



A COMMUNITY OF CHOICE

Planning and Development Department

2101 O'Neil Avenue, Suite 202, Cheyenne WY 82001
(Phone) 307-637-6282 (Fax) 307-637-6366

MEMO

To: Honorable Mayor Patrick Collins and Members of the City Council
From: Seth Lloyd
Subject: UDC-21-00132 / Equipoise Addition Zone Change
Date: June 28, 2021

Background:

The item for consideration is a *Zoning Map Amendment (zone change)*. This is approved by Ordinance.

The proposed Governing Body review schedule is as follows:

- Introduction and Referral 6/28/2021
- Public Services Committee 7/7/2021
- Second reading 7/12/2021
- Public Services Committee 7/20/2021
- Third and final reading 7/26/2021

Related Items:

- Equipoise Addition, 2nd Filing Plat (UDC-21-00133)

Planning Commission Recommendation:

The Planning Commission heard this item at their June 7, 2021 meeting and **unanimously** recommended the Governing Body approve this application.

The Planning Commission Staff report is attached and has not been changed.

Attachments:

1. Ordinance
2. Planning Commission Staff Report

ORDINANCE NO. _____

ENTITLED: "AN ORDINANCE AMENDING THE OFFICIAL ZONING MAP OF THE CITY OF CHEYENNE CHANGING THE ZONING CLASSIFICATION FROM MR MEDIUM-DENSITY RESIDENTIAL TO NR-2 NEIGHBORHOOD RESIDENTIAL – MEDIUM DENSITY FOR LAND LOCATED NORTHWEST OF THE INTERSECTION OF COUNTRY CLUB AVENUE AND SNYDER AVENUE."

BE IT ORDAINED BY THE GOVERNING BODY OF THE CITY OF CHEYENNE, WYOMING:

Section 1. That the owner(s) of the property described herein has (have) applied for a zoning map amendment ("zone change") for said property in accordance with Section 2.2.1, Zoning Map Amendment, of the Cheyenne Unified Development Code ("UDC").

Section 2. That on June 7, 2021, the City of Cheyenne Planning Commission conducted a public hearing, reviewed the proposed zone change that is the subject of this ordinance, and recommended approval of said zone change.

Section 3. That the Governing Body of the City of Cheyenne finds that the zone change that is the subject of this ordinance meets the criteria specified in Section 2.2.1.d of the UDC.

Section 4. That, in accordance with Section 2.2.1, Zoning Map Amendment, Section 5.1.2, Zoning Districts Established, and Section 5.1.3, Official Zoning Map, of the UDC, the aforementioned application is hereby approved and the zoning classification of the real property described as Lots 1 and 2, Block 1, Equipoise Addition is hereby changed to NR-2 Neighborhood Residential - Medium Density.

Section 5. That the City Engineer is hereby authorized and directed to alter and amend the Official Zoning Map as described in Section 5.1.3 of the UDC to comply with the zone change as described in Section 4 above when this ordinance takes effect in accordance with Section 7 below.

Section 6. Sections, paragraphs, sentences, clauses and phrases of this ordinance are severable. If any section, paragraph, sentence, clause, or phrase of this ordinance is declared unconstitutional, such unconstitutionality shall not affect any of the remaining sections, paragraphs, sentences, clauses, and phrases.

Section 7. That this ordinance shall be in full force and effect upon its approval and publication.

FIRST READING: _____

SECOND READING: _____

THIRD AND FINAL READING: _____

PATRICK COLLINS, MAYOR

(SEAL)
ATTEST:

KRISTINA F. JONES, CITY CLERK

publish date: _____



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CITY OF CHEYENNE PLANNING COMMISSION

JUNE 7, 2021

STAFF REPORT

FILE: UDC-21-00132: Equipoise Addition Zone Change

REQUEST: A request to rezone approximately 0.6 acres of land from MR Medium-density Residential to NR-2 Neighborhood Residential – Medium Density

LOCATION: Northwest of Snyder and Country Club

APPLICANT: R3 Real Estate, LLC – Pat Rudd

AGENT: Steil Surveying Services – Casey Palma

OWNER: R3 Real Estate, LLC

ZONING: MR Medium-density Residential

FUTURE LAND USE: Urban Residential

PURPOSE: To allow narrower townhome development.

PREPARED BY: Seth Lloyd, Planner II - Development



RECOMMENDED MOTION:

Move to **approve** the rezoning of Lots 1 and 2, Block 1, Equipoise Addition to NR-2 Neighborhood Residential – Medium Density as shown in the attached zone change map, noting that the project meets the review criteria for approval.

APPLICABLE CITY CODE SECTION(S) AND PLANS:

- UDC 2.2.1 Zoning Map Amendment
- UDC Article 5
- PlanCheyenne

BACKGROUND:

This zone change application proposes changing the zoning from MR Medium-density Residential to NR-2 Neighborhood Residential – Medium Density for 0.6 acres of land. The land is currently developed with an apartment building and is anticipated to be developed in the future with both the existing apartment building and a set of townhomes.

SURROUNDING LAND USE AND ZONING:

	Future Land Use Designation	Zoning	Land Use
Subject Site	Urban Residential	MR	Apartments
North	Urban Residential	MR	Single-family residential
South	Urban Residential	MR	Apartments, Single-family residential
East	Urban Residential	MR	Apartments, Single-family residential
West	Urban Residential	MR	Single-family residential

ANALYSIS OF APPLICATION CONFORMANCE WITH REVIEW CRITERIA:

Should the Planning Commission wish to recommend approval of the Zoning Map Amendment, the Commission must make the following findings required in UDC 2.2.1.d. A detailed analysis is below:

1) The application is in accordance with the development policies and physical patterns identified in the Comprehensive Plan. (UDC 2.2.1.d.1)

PlanCheyenne encourages growth within the Urban Service Boundary and the maximization of existing infrastructure. This property is within the Urban Service Boundary, in an area with existing infrastructure. Plan Cheyenne also encourages infill development and a mix of housing types in neighborhoods (although it is not the intent of the plan to change existing, stable neighborhoods).

The Future Land Use Designation for this property is Urban Residential. According to comprehensive plan The optimal City zones for the future land use designation of Urban Residential are LR, MR, HR, NR-1, NR-2, and NR-3.

Based on the policies and future land use designation of the subject property, NR-2 Neighborhood Residential – Medium Density zoning is appropriate at this location.

The proposed zone change **complies** with review criterion 1.

2) The application is compatible with nearby property, specifically considering existing zoning, the Comprehensive Plan, and any other official plans and policies created under the guidance of that plan for these areas; (UDC 2.2.1.d.2)

This property, and all surrounding property, is currently zoned MR with the future land use designation of Urban Residential. The MR zone allows a variety of residential development, including apartments with conditional use approval, but the NR-2 zone allows smaller lot sizes and smaller multifamily without conditional use approval. The Urban Residential future land use designation encourages a variety of housing types and densities. Existing development in the area includes apartment buildings and likely includes properties which have two dwelling units. The NR-2 zone is compatible with the surrounding area considering existing zoning and development patterns.

The proposed zone change for the subject property **complies** with review criterion 2.

3) The suitability of the subject property for development according to the standards and uses of the existing zoning district, compared to the suitability of the subject property for development according to the standards and uses of the proposed zoning district (UDC 2.2.1.d.3)

The current MR zone allows apartments as a conditional use, larger townhomes, duplexes, and all but the smallest single-family home lots. The NR-2 zone allows larger apartments as a conditional use, smaller apartments, townhomes, duplexes, and the smallest style of single-family lots, including Cottage Lots.

While the surrounding area is all zoned MR, there are lots in the neighborhood which are too small to be established under the current regulations. The NR-2 zone would allow smaller lots which are compatible with existing development patterns.

The proposed zone change **complies** with review criterion 3.

4) The ability of the subject property and surrounding vicinity to be developed according to the Subdivision Standards in Article 4 considering the proposed zoning (UDC 2.2.1.d.4)

The property is in an area currently developed and no additions to the street network are necessary. The existing network meets the intended street network of the NR-2 zone.

The proposed zone change for the subject property **complies** with review criterion 4.

5) The ability of the application to support the Intent and Applicability statements of the proposed zoning district and achieve the Design Objectives of any specific standards. (UDC 2.2.1.d.5)

The NR-2 zone is intended for a medium residential density and mix of dwelling types in a compact development pattern (with smaller, walkable blocks).

While any residential development within the City is expected to meet the general residential design standards, the NR-2 zone has additional compact and mixed-density neighborhood design standards found in UDC 6.6.4. The MR zone allows wide driveways, provided they are setback from the side lot line, and allows the front façade to be dominated by the garage. The NR-2 zone requires more discrete access (narrower driveways or alley access), but allows driveways to be built to the side property line. Garages are prohibited from dominating the front façade. Existing development in the area is much more reflective of the design standards for the NR-2 zone than the design of the MR zone.

The proposed zone change for the subject property **complies** with review criterion 5.

6) The ability of all potential future development to meet all applicable standards for development in the proposed zoning district, including other development options if any specific development proposed in association with the application is not executed after approval. (UDC 2.2.1.d.6)

The property has the ability to utilize the alley for access and any new development would be able to meet the design standards of the NR-2 zone. While a specific application is proposed with this zone change, the NR-2 zone would give more flexibility in potential development (or redevelopment) of this parcel, should the specific development proposed not be executed.

The proposed zone change **complies** with review criterion 6.

7) The review and recommendations of other reviewing bodies. (UDC 2.2.1.d.7)

No reviewing agencies provided recommendations regarding the proposed zone change.

The proposed zone change for the subject property **complies** with review criterion 7.

8) Whether the application will harm the public health, safety, or general welfare. (UDC 2.2.1.d.8)

City staff is satisfied that this proposed zone change would not adversely affect the public health, safety, or general welfare.

The proposed zone change for the subject property **complies** with review criterion 8.

CONFORMANCE WITH APPLICABLE PLANS:

The project is located in an area covered by the following plans:

- PlanCheyenne

Conformance with PlanCheyenne is covered by review criterion 1.

STAFF REVIEW:

Through the review process, the following comments were received:

1. Existing development patterns are reflective of NR-2 design standards.
2. Proposed rezoning is compatible with the comprehensive plan.

CONCLUSION:

Staff is satisfied that the application meets the review criteria set forth in UDC 2.2.1.(d). The NR-2 zone is appropriate based on the future land use designation for the subject property and surrounding development patterns.

ALTERNATIVES:

1. Recommend approval of the zoning amendment as submitted by the applicant (**Staff Recommendation**).
2. Recommend approval of the zoning amendment subject to conditions or modifications.
3. Recommend denial of the zoning amendment based on findings of denial. The Planning Commission must conclude that the project does not meet all the review criteria. As part of the motion, findings for denial must be stated.
4. Postpone the zoning amendment until issues identified during the meeting can be resolved.

General Information Regarding Alternatives:

If the Commission acts contrary to staff's recommendation or modifies conditions of approval, the Commission shall cite specific reasons (based on the review criteria) for approval or denial.

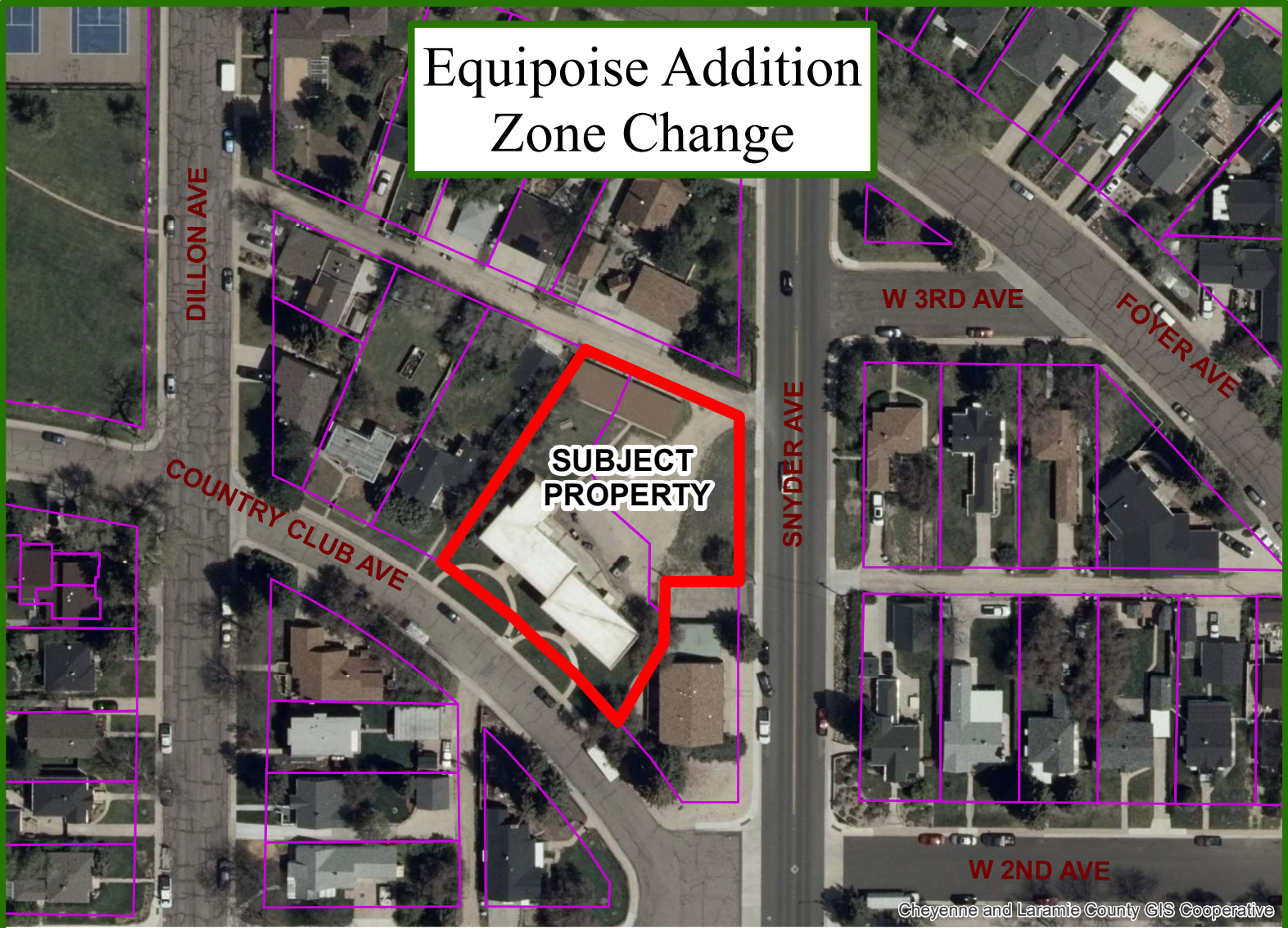
STAFF RECOMMENDATION:

Staff recommends approval of the rezoning of the property from MR to NR-2.

ATTACHMENTS:

1. Aerial, Future Land Use Plan, and Current Zoning Map
2. Master Application
3. Applicant Provided Zone Change Map

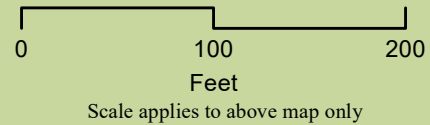
Equipoise Addition Zone Change



Cheyenne and Laramie County GIS Cooperative

Application Number
Zone Change
UDC-21-00132

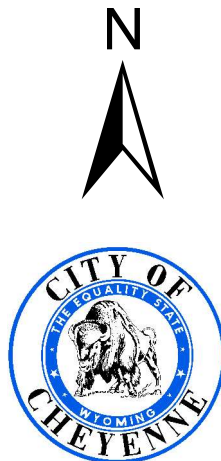
Agent: Casey Palma
Steil Surveying Services
Owners: R3 Real Estate, LLC
Pat Rudd



Current Zoning

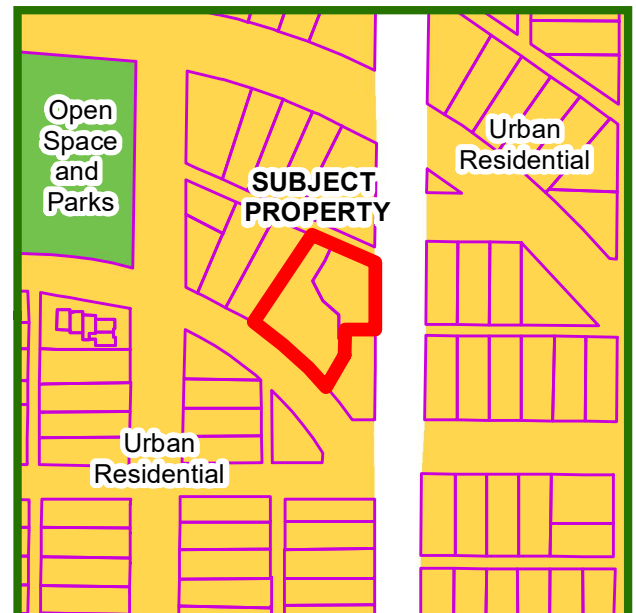


Cheyenne and Laramie County
GIS Cooperative



This map is made possible through the Cheyenne and Laramie County Cooperative GIS (CLCCGIS) Program and is for display purposes only. The CLCCGIS invokes its sovereign and governmental immunity in allowing access to or use of this data.

Future Land Use



Planning and Development: Zoning Map Amendment Application

Submission date: **31 March 2021, 1:10PM**
Receipt number: **14**
Related form version: **9**

General Information

Applicant Name: **R3 Real Estate, LLC c/o Pat Rudd**

Applicant Address: **1859 MILTON DR**

Applicant City: **Cheyenne**

Applicant State: **WY**

Applicant Zip Code: **82001**

Applicant Phone: **307-870-4691**

Applicant Email: **patrudd@cheyennehomes.com**

Representative Name: **Steil Surveying Services**

Representative Address: **1102 W 19th St**

Representative City: **Cheyenne**

Representative State: **WY**

Representative Zip Code: **82001**

Representative Phone: **307-634-7273**

Representative Email: **cpalma@steilsurvey.com**

Owner Name: **R3 Real Estate, LLC do Pat Rudd**

Owner Address: **11859 MILTON DR**

Owner City:	Cheyenne
Owner State:	WY
Owner Zip Code:	82001
Owner Phone:	307-870-4691
Owner Email:	patrudd@cheyennehomes.com
Who is the primary contact regarding this application?	Representative
Letter of Authorization	Letter of Authorization.PDF
Project Location (Street Address or General Location):	912 COUNTRY CLUB AVE + TBD SNYDER AVENUE
Assessor's Parcel ID number(s)	14672542401200 & 14672542401300
Total Project Area	25,679 (15,314 disturbed)
Existing Zoning	MR - Medium-density Residential
Requested Zoning	MR - Medium-density Residential NR-2 - Neighborhood Residential - Medium Density

Application-Specific Questions

Written Statement	Zone Change & Replat to enable 4-unit single-family attached residential development utilizing a shared parking area with the adjacent multi-family apartment building at 912 Country Club Avenue (alley-access rear-loaded)
Zoning Map	SSS19334 Equipoise2nd ZC-033121.pdf
Notification Letter	neighbor-notification-letter-CCTownhomes.docx
Supporting Documents / Information	Building Elevations_UDC-21-00065.pdf Landscape Plan_UDC-21-00065.pdf Site Plan_UDC-21-00065.pdf

Review Criteria

The application is in accordance with the development policies and physical patterns identified in the Comprehensive Plan.

Acknowledgement of this review criteria

The application is compatible with nearby property, specifically considering existing zoning, the Comprehensive Plan, and any other official plans and policies created under the guidance of that plan for these areas.

Acknowledgement of this review criteria

The suitability of the subject property for development according to the standards and uses of the existing zoning district, compared to the suitability of the subject property for development according to the standards and uses of the proposed zoning district.

Acknowledgement of this review criteria

The ability of the subject property and surrounding vicinity to be developed according to the Subdivision Standards in Article 4 considering the proposed zoning.

Acknowledgement of this review criteria

The ability of the application to support the Intent and Applicability statements of the proposed zoning district, and achieve the Design Objectives of any specific standards.

Acknowledgement of this review criteria

The ability of all potential future development to meet all applicable standards for development in the proposed zoning district, including other development options in the event that any specific development proposed in association with the application is not executed after approval.

Acknowledgement of this review criteria

The review and recommendations of other reviewing bodies

Acknowledgement of this review criteria

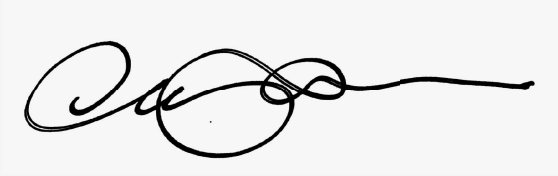
Whether the application will harm the public health, safety, or general welfare.

Acknowledgement of this review criteria

Signature / Certification

Applicant Signature

Name of signatory: Casey L Palma

A handwritten signature in black ink, appearing to read 'Casey L Palma', with a long horizontal flourish extending to the right.

Uploaded signature image: [CPalma_121218.png](#)

Please enter an email address for an email receipt.

CPalma@SteilSurvey.com

CURVE DATA ON THE PLAT IS CHORD DEFINITION.

CURVE TABLE			
CURVE #	DELTA	RADIUS	CHORD BEARING
1	141° 14' 33"	602.86'	54° 17' 02"
2	141° 14' 33"	602.86'	54° 17' 02"

GENERAL NOTES

1. BASIS OF AZIMUTH - CITY OF CHEYENNE DATUM REFERENCED FROM CITY CONTROL MONUMENTS "ROLLING HILLS" & "ZEUS".
2. SUBJECT PROPERTY DOES NOT FALL WITHIN SPECIAL 100-YEAR FLOOD HAZARD AREA ACCORDING TO FEMA MAP NO. 56021C1089F EFFECTIVE DATE JANUARY 17, 2007.
3. ALL UNMUNIMENTED LOT CORNERS, ANGLE POINTS, AND PARTS OF THE PLAT ARE TO BE MONUMENTED WITH 1" ALUMINUM CAP STAMPED "SSS P.L.S. 5910" ON 3/4" X 2 1/2" ALUMINUM CAP STAMPED "SSS P.L.S. 5910" ON 3/4" X 2 1/2" ALUMINUM CAP STAMPED "SSS P.L.S. 5910".
4. WATER AND SEWER SERVICE TO BE PROVIDED BY CITY OF CHEYENNE BOARD OF PUBLIC UTILITIES.
5. "MUTUAL ACCESS & UTILITY EASEMENT" PROVIDED FOR MUTUAL ACCESS & UTILITY EASEMENT, LOCAL FOR THE PURPOSES OF THE PLAT, TO BE PROVIDED FOR AND TO THE OWNERS OF LOTS 1 & 2. THIS PLAT, THEIR LEGAL SUCCESSORS AND/OR ASSIGNS.
6. THE PURPOSE OF THIS PLAT IS TO RECONFIGURE THE EXISTING LOT LINES TO PROVIDE FOR THE REDEVELOPMENT OF THE EXISTING PARKING LOT/ORGANIZATION AND ACCOMMODATE TOWNHOME DEVELOPMENT ALONG SINDER AVENUE FRONTAGE.

OWNER:

R3 REAL ESTATE, LLC
1855 MILTON DRIVE
CHEYENNE, WY 82001

ENGINEER:

SUMMIT ENGINEERING
5907 TOWNSEND PLACE
CHEYENNE, WY 82009
307-637-0681

SURVEYOR:

STIEL SURVEYING SERVICES, LLC.
1102 WEST 19th STREET
CHEYENNE, WY 82001
307-634-7273

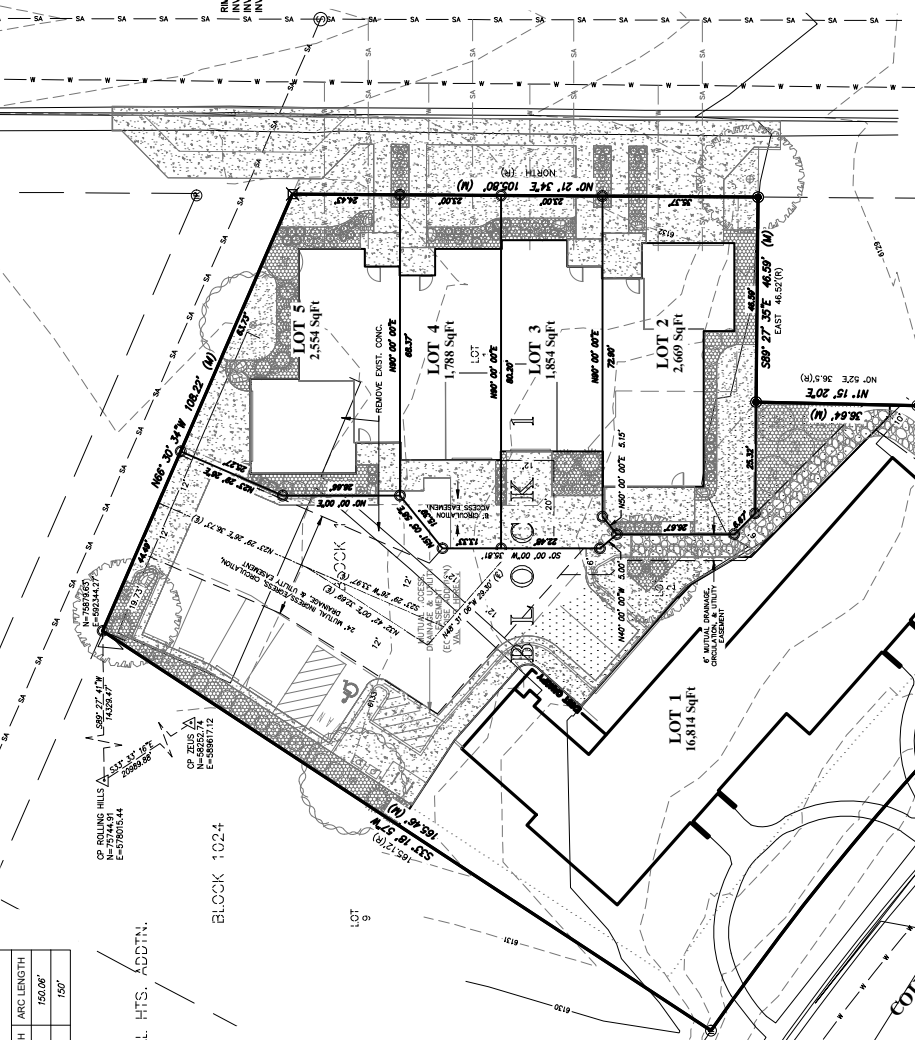
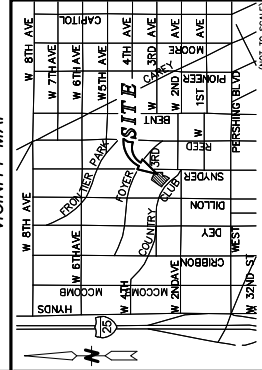
DEVELOPER:

TBD

VACATION STATEMENT

IT IS THE INTENT OF THIS REPLAT TO VACATE ALL OF BLOCK 1, LOTS 1 & 2 INCLUSIVE, INCLUDING ALL LOT LINES AND EASEMENTS OF RECORD

VICINITY MAP



LEGAL DESCRIPTION

All of Lots 1 & 2, Block 1, Equipose Addition, City of Cheyenne, Wyoming.



LEGEND

- SET 3/4" X 2 1/2" LONG REBAR WITH 1 1/2" ALUMINUM CAP STAMPED "SSS P.L.S. 5910"
- FOUND 1 1/2" ALUMINUM CAP STAMPED "SSS P.L.S. 2500"
- FOUND BOLT
- FOUND 3/4" REBAR
- FOUND 1/2" IRON PIPE
- FOUND 1/2" IRON PIPE
- DENOTES MEASURED DATA THIS SURVEY
- DENOTES RECORDED DATA PER LAND DESCRIPTION
- EXISTING FIRE HYDRANT
- EXISTING WATER VALVE
- EXISTING TELEPHONE PEDESTAL
- EXISTING WATER MAIN
- PROPOSED WATER SERVICE LINE
- EXISTING SANITARY SEWER MAIN
- PROPOSED SANITARY SEWER SERVICE
- EXISTING SANITARY SEWER MANHOLE
- DIRECTION OF SURFACE DRAINAGE

GENERAL INFORMATION

TOTAL AREA: ± 25,679 Sqft
TOTAL DISTURBED AREA: ± 15,314 Sqft
DEDICATED STREET R/W: ± 0
NEW MUTUAL EASEMENT(S): ± 3,986 Sqft
BLOCK PERMETER: N/A
NUMBER OF LOTS: 5
MULTI-FAMILY LOTS: 1 (11 UNITS - 13 BEDROOMS)
NUMBER OF SINGLE-FAMILY LOTS: 4

ZONING

EXISTING ZONING: MR - MEDIUM-DENSITY RESIDENTIAL
PROPOSED ZONING: NR-2 - NEIGHBORHOOD RESIDENTIAL MEDIUM-DENSITY

CERTIFICATE OF SURVEYOR

I, Jeffrey B. Jones, Registered Professional Land Surveyor in the State of Wyoming, for and on behalf of Stiel Surveying Services, LLC, hereby state, to the best of my knowledge, information and belief, that this map was prepared from field notes taken during an actual survey made by me or under my direct supervision; and that this map correctly shows the results of said survey and that the monuments found or set are as shown.

ZONE CHANGE MAP FOR EQUIPOSE ADDITION 2nd FILING

A REPLAT OF ALL OF
BLOCK 1 (LOTS 1 & 2, INCLUSIVE)
EQUIPOSE ADDITION,
CITY OF CHEYENNE, LARAMIE
COUNTY, WYOMING.

Date prepared: MARCH, 2021



STIEL SURVEYING SERVICES, LLC
PROFESSIONAL LAND SURVEYORS
1102 WEST 19th ST. CHEYENNE, WY 82001 • (307) 634-7273
755 GILBERT ST. WHEATLAND, WY 83091 • (307) 588-9789
www.StielSurvey.com • info@StielSurvey.com

REVISD: 3/21/2021
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